

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 695

BY JUDICIARY, RULES AND ADMINISTRATION COMMITTEE

AN ACT

RELATING TO FORCIBLE ENTRY AND UNLAWFUL DETAINER; AMENDING SECTION 6-310A, IDAHO CODE, TO REVISE A PROVISION REGARDING A FEE FOR SERVICE; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 6-310A, Idaho Code, be, and the same is hereby amended to read as follows:

6-310A. LIMITED ALTERNATIVE REMEDY TO REMOVE UNAUTHORIZED PERSONS FROM RESIDENTIAL REAL PROPERTY. (1) The legislature finds that the right to exclude others from entering, and the right to direct others to immediately vacate, residential real property are the most important real property rights. The legislature further finds that existing remedies regarding unauthorized persons who unlawfully remain on residential real property fail to adequately protect the rights of the property owner and fail to adequately discourage theft and vandalism. The intent of this section is to quickly restore possession of residential real property to the lawful owner of the property when the property is being unlawfully occupied and to thereby preserve property rights while limiting the opportunity for criminal activity.

(2) A property owner or the owner's authorized agent may request from the sheriff of the county in which the property is located the immediate removal of a person or persons unlawfully occupying a residential dwelling pursuant to this section if all of the following conditions are met:

(a) The requesting person is the property owner or authorized agent of the property owner;

(b) The real property that is being occupied includes a residential dwelling;

(c) An unauthorized person or persons have unlawfully entered and remain or continue to reside on the property owner's property;

(d) The real property was not open to members of the public at the time the unauthorized person or persons entered;

(e) The property owner has directed the unauthorized person to leave the property;

(f) The unauthorized person or persons are not current or former tenants pursuant to a written or oral rental agreement authorized by the property owner;

(g) The unauthorized person or persons are not immediate family members of the property owner; and

(h) There is no pending litigation related to the real property between the property owner and any known unauthorized person.

(3) To request the immediate removal of an unlawful occupant of a residential dwelling, the property owner or the owner's authorized agent must

1 submit a complaint by presenting a completed and verified "Complaint to Re-
 2 move Persons Unlawfully Occupying Residential Real Property" to the sheriff
 3 of the county in which the real property is located. The submitted complaint
 4 must be in substantially the following form:

5 COMPLAINT TO REMOVE PERSONS UNLAWFULLY OCCUPYING
 6 RESIDENTIAL REAL PROPERTY

7 I, the owner or authorized agent of the owner of the real property
 8 located at....., declare under the penalty of perjury that (ini-
 9 tial each box):

10 1..... I am the owner of the real property or the authorized agent
 11 of the owner of the real property.

12 2..... I purchased the property on.....

13 3..... The real property is a residential dwelling.

14 4..... An unauthorized person or persons have unlawfully entered
 15 and are remaining or residing unlawfully on the real property.

16 5..... The real property was not open to members of the public at
 17 the time the unauthorized person or persons entered.

18 6..... I have directed the unauthorized person or persons to leave
 19 the real property, but they have not done so.

20 7..... The person or persons are not current or former tenants pur-
 21 suant to any valid lease authorized by the property owner, and any
 22 lease that may be produced by an occupant is fraudulent.

23 8..... The unauthorized person or persons sought to be removed are
 24 not owners or co-owners of the property and have not been listed on
 25 the title to the property unless the person or persons have engaged
 26 in title fraud.

27 9..... The unauthorized person or persons are not immediate family
 28 members of the property owner.

29 10..... There is no litigation related to the real property pending
 30 between the property owner and any person sought to be removed.

31 11..... I understand that a person or persons removed from the
 32 property pursuant to this procedure may bring a cause of action
 33 against me for any false statements made in this complaint, or for
 34 wrongfully using this procedure, and that as a result of such action
 35 I may be held liable for actual damages, penalties, costs, and rea-
 36 sonable attorney's fees.

37 12..... I am requesting the sheriff to immediately remove the unau-
 38 thorized person or persons from the residential property.

39 13..... A copy of my valid government-issued identification is at-
 40 tached, or I am an agent of the property owner, and documents evi-
 41 dencing my authority to act on the property owner's behalf are at-
 42 tached.

43 I HAVE READ EVERY STATEMENT MADE IN THIS PETITION AND EACH STATEMENT
 44 IS TRUE AND CORRECT. I UNDERSTAND THAT THE STATEMENTS MADE IN THIS
 45 PETITION ARE BEING MADE UNDER PENALTY OF PERJURY.

46 ... (Signature of Property Owner or Agent of Owner) ...

47 (4) Upon receipt of the complaint, the sheriff shall verify that the
 48 person submitting the complaint is the record owner of the real property or
 49 the authorized agent of the owner and appears otherwise entitled to relief
 50 pursuant to the provisions of this section. If verified, the sheriff shall,

1 without delay, serve a notice to immediately vacate on all the unlawful occu-
2 pants and shall put the owner in possession of the real property. Service may
3 be accomplished by hand delivery of the notice to an occupant or by posting
4 the notice on the front door or entrance of the dwelling. The sheriff shall
5 also attempt to verify the identities of all persons occupying the dwelling
6 and note the identities on the return of service. If appropriate, the sher-
7 iff may arrest any person found in the dwelling for trespass, outstanding
8 warrants, or any other legal cause.

9 (5) The sheriff is entitled to the same fee for service of the notice
10 to immediately vacate as if the sheriff were serving a writ of ~~possession~~
11 restitution. After the sheriff serves the notice to immediately vacate, the
12 property owner or authorized agent may request that the sheriff stand by to
13 keep the peace while the property owner or agent of the owner changes the
14 locks and removes the personal property of the unlawful occupants from the
15 premises to or near the property line. When such a request is made, the sher-
16 iff may charge a reasonable hourly rate, and the person requesting the sher-
17 iff to stand by and keep the peace is responsible for paying the reasonable
18 hourly rate set by the sheriff. The sheriff is not liable to the unlawful oc-
19 cupant or any other party for loss, destruction, or damage of property. The
20 property owner or the owner's authorized agent is not liable to an unlawful
21 occupant or any other party for the loss, destruction, or damage to the per-
22 sonal property unless the removal was wrongful.

23 (6) A person may bring a civil cause of action for wrongful removal un-
24 der this section. A person harmed by a wrongful removal under this section
25 may be restored to possession of the real property and may recover actual
26 costs and damages incurred, statutory damages equal to triple the fair mar-
27 ket rent of the dwelling, court costs, and reasonable attorney's fees. The
28 court shall advance the cause on the calendar.

29 (7) The provisions of this section shall not limit the rights of a prop-
30 erty owner or limit the authority of a law enforcement officer to arrest an
31 unlawful occupant for trespassing, vandalism, theft, or other crimes.

32 SECTION 2. An emergency existing therefor, which emergency is hereby
33 declared to exist, this act shall be in full force and effect on and after
34 July 1, 2026.